



Allocation Principles 2014

made under section 96-1 of the



Aged Care

Superannuation Contributions Tax (Assessment and Collection) Act 1997

No. 70, 1997

Compilation No. 724

Compilation date: 1 October 2022 ~~10 March 2016~~

Includes amendments up to: F2022L01276 ~~Act No. 4, 2016~~

Registered: 20 October 2022

Registered: 24 March 2016

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Allocation Principles 2014* that shows the text of the law as amended and in force on 1 October 2022~~10 March 2016~~ (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1—Preliminary	1
1 Name of principles.....	1
3 Authority.....	1
4 Definitions.....	1
5 Meaning of <i>low-means care recipient</i>	2
6 Meaning of <i>representative</i>	2
Part 2—Planning the allocation of places	4
9 Purpose of this Division.....	4
10 Kinds of people in respect of whom Secretary may determine proportion of care.....	4
11 Criteria that must be considered in making determination.....	4
Part 4—The allocation process	5
Division 1—Invitations to apply for allocation of places	5
25 Purpose of this Division.....	5
26 Proportion of care for specified kinds of people.....	5
Division 2—Assessment of applications	6
27 Purpose of this Division.....	6
28 Competitive assessment of applications for allocations.....	6
29 Diversity of choice for care recipients.....	7
30 Continuity of care.....	7
31 Secretary may also consider other matters.....	8
Division 3—Conditions of allocation of places	9
33 Conditions of allocation—generally.....	9
Part 5—When allocations take effect	10
Division 1—When allocations take effect	10
35 Purpose of this Division.....	10
36 Matters to which Secretary must have regard.....	10
Division 2—Provisional allocation periods	11
37 Purpose of this Division.....	11
38 Matters to be considered.....	11
Part 6—Transfer of places other than provisionally allocated places	12
Division 1—Application of this Part	12
41 Application of this Part.....	12
Division 2—Transfer of places	13
42 Purpose of this Division.....	13
45 Matters to be considered in deciding whether to determine different notice period.....	14
46 Matters to be considered in determining different notice period.....	14
Division 3—Consideration of transfers	15
47 Purpose of this Division.....	15
48 Other matters that must be considered.....	15
Division 4—Other matters	17
49 Purpose of this Division.....	17
51 Information that may be given to transferee and time for giving information.....	17